CRIMINAL LAW

Friday, Oct. 16
(Lecture 14)

Hello! This slide will help you prepare for today's class.

- **We will wrap return to our discussion of the different *mens rea* requirements that may attach to regulatory offences. Please be ready to discuss *Sault Ste Marie*, *Chapin*, and *Motor Vehicle Reference*.**
- **Next, we will return to *Viens* and involuntariness. Have your remaining questions about that *Viens* ready!**
- **Finally, we will turn to *Zora* to review some key concepts.**
- **I will also provide some logistical information about the midterm exam.**

CRIMINAL LAW

Friday, October 14
(Lecture 13)

Objectives for Week 7 (continued)

46. Explain the distinction between regulatory offences and true crimes, including the key rationales for that distinction.

47. **Explain the distinction between strict liability offences and absolute liability offences and identify them using the principles of statutory interpretation.**

48. **Build your "statutory interpretation toolkit":**
    - **Presumption of strict liability**
    - ***Charter* limitation on absolute liability offences**

49. **Explain and apply the defence of due diligence.**

50. Revisit the concept of "involuntariness" and consider the significance of its status as an *actus reus* element in relation to regulatory offences.

Fault Ladder (Regulatory Offences)

Higher-Order Mental States ***Accused's deeper reasons for action*** (not an 'ingredient' in most offences)	**- Motive** [need not be proved] **- Ulterior Purpose** [only some offences]
Subjective Fault ***What was in Accused's mind?*** (default for criminal offences, i.e. presumptive starting point when interpreting true crimes)	**- Intention** **- Recklessness** **- [Knowledge/Wilful Blindness]**
Objective Fault ***Did Accused's conduct fall below an objective standard?*** (*True crimes* - only where presumption of subjective fault overridden by clear legislative intent.)	**- Criminal Negligence** (s. 219) (*marked and substantial departure*) **- Penal Negligence [other]** (*marked departure*)
	Strict Liability (*default for regulatory offences; i.e. presumptive starting point when interpreting regulatory offences*)
No Fault Required	**Absolute Liability** (cannot be combined with possibility of imprisonment)

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Regulatory Offences - *MR*

1. Subjective *Mens Rea* (Crown must prove AR and MR)
2. Strict Liability (Crown must prove AR; defence of due diligence available, burden on defence/reverse onus)
3. Absolute Liability (Crown must prove AR; no defence of due diligence available, i.e., MR not at issue)

Defence of Due Diligence

It is "open to the accused to avoid liability **by proving that [they] took all reasonable care**.

This involves consideration of **what a reasonable [person] would have done in the circumstances**.

The defence will be available if

the accused reasonably believed in a **mistaken set of facts** which, if true, would render the act or omission innocent, or

if [they] **took all reasonable steps** to avoid the particular event."

Defence of Due Diligence

Rice bran wax



Soy wax



Sault Ste. Marie

"[Regulatory offences] would [require subjective *mens rea*] only if such words as "wilfully," "with intent," "knowingly," or "intentionally" are contained in the statutory provision creating the offence. […]

Offences of absolute liability would be those in respect of which the Legislature had made it clear that guilt would follow proof merely of the proscribed act. [1] The overall regulatory pattern adopted by the Legislature, [2] the subject matter of the legislation, [3] the importance of the penalty, and [4] the precision of the language used will be primary considerations in determining whether the offence falls into the third category."

Sault Ste. Marie

> Presume Strict Liability

> To Identify Subjective *Mens Rea* –

- Clear words like "intent" or "knowing" …

> To Identify Absolute Liability –

- "Legislature had made it clear…"; primarily consider –
  (1) Overall regulatory pattern;
  (2) Subject matter of legislation;
  (3) Importance of penalty; and
  (4) Language used

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Charter, s. 7

Everyone has the right to life, liberty and security of the person and the right not to be deprived thereof except in accordance with the principles of fundamental justice.

Motor Vehicle Reference

"The combination of imprisonment and of absolute liability violates s. 7 of the *Charter*…"

Statutory Interpretation Toolkit

- ✓ The modern principle of statutory interpretation (*Rizzo Shoes*)
- ✓ The principle of bilingual interpretation
- ✓ The rule of strict construction (*Paré*)
- ✓ The purposive approach to *Charter* interpretation (*Hunter)*
- ✓ The symmetry rule of thumb [for subjective *mens rea*] (Roach)
- ✓ The subjective fault presumption [for *mens rea*] (*Zora*)
- ✓ **Presumption of strict liability (for regulatory offences)**
- ✓ ***Charter* limitation on absolute liability offences**



Highway Traffic Act, R.S.O. 1990, c. H.8

S. 104 (2.2) No parent or guardian of a person under sixteen years of age shall authorize or knowingly permit that person to ride a bicycle, other than a power-assisted bicycle, on a highway unless the person is wearing a bicycle helmet as required by subsection (2.1).

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84.1 (1) Where a wheel becomes detached from a commercial motor vehicle, or from a vehicle being drawn by a commercial motor vehicle, while the commercial motor vehicle is on a highway, the operator of the commercial motor vehicle and the owner of the vehicle from which the wheel became detached are guilty of an offence.

(5) It is not a defence to a charge under subsection (1) that the person exercised due diligence to avoid or prevent the detaching of the wheel.

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Highway Traffic Act, R.S.O. 1990, c. H.8

S. 106 (4) No person shall drive on a highway a motor vehicle in which there is a passenger who is under 16 years old unless, […]

(b) that passenger is required by the regulations to be secured by a child seating system or child restraint system, and is so secured.

(8.3) Every person who contravenes or fails to comply with this section or a regulation made under this section is guilty of an offence and on conviction is liable to a fine of not less than $200 and not more than $1,000.

Sault Ste. Marie

> Presume Strict Liability

> To Identify Subjective *Mens Rea* –

- Clear words like "intent" or "knowing" …

> To Identify Absolute Liability –

- "Legislature had made it clear…"; primarily consider –
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Scenario 1: **Bertha opens the car door for her six-year-old son and tells him to get in and buckle up. She does not check his seatbelt. Looking in the rearview mirror, she sees him bouncing around but does not think much of it.** **Bertha is pulled over and charged under s. 106(4)(b). She honestly believed her son was buckled in.**

Could Bertha claim the defence of due diligence?

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(b) that passenger is required by the regulations to be secured by a child seating system or child restraint system, and is so secured.

Scenario 2: **Bertha secures her six-year-old son in his booster seat and checks that his seatbelt is correctly fastened. As she is driving, her son quietly unclips his seatbelt. He has never done this before.** **Bertha is pulled over and charged under s. 106(4)(b). She honestly believed her son was buckled in.**

Could Bertha claim the defence of due diligence?

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R. v. Viens

"In absolute liability offences the defendant cannot raise the absence of *mens rea* to escape liability. In strict liability offences, once the prosecution proves the *actus reus* the *mens rea* is presumed unless a defence of due diligence is made out. It is therefore legitimate to ask if and how a defendant could raise the issue of involuntariness in the context of absolute and strict liability offences if the requirement of voluntariness attaches only to the *mens rea*? It should not surprise that Lamer C.J. in *Daviault*, at p. 71, stated that he preferred associating voluntariness with the *actus reus* "so that the defence clearly be available in strict liability offences."

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R. v. Zora at paras. 32-33

Determining the *mens rea* […] involves an exercise in statutory interpretation to discern the fault standard intended by Parliament. A key part […] is the long-standing presumption that Parliament intends crimes to have a subjective fault element […]

R. v. Zora

Failure to comply with undertaking

145 (4) Every person is guilty of an indictable offence and liable to imprisonment for a term of not more than two years or an offence punishable on summary conviction who,

(a) is at large on an undertaking and who fails, without lawful excuse, to comply with a condition of that undertaking

R. v. Zora

- **Subjective/objective MR distinction – paras. 29-30**
- **Statutory interpretation & MR (objective/subjective) – paras. 32 ff.**
- **Legal duties – para. 45**
- **Identifying MR 'ingredients' – paras. 108 ff.**

R. v. Zora

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Actus Reus	*Mens Rea*
Fails to comply with condition of undertaking [conduct]	**Intent/recklessness**
Is at large on an undertaking [circumstance]	**Knowledge/wilful blindness**
Without lawful excuse *[provides additional defence]*	

R. v. Zora

"Therefore, subjective *mens rea* under s. 145(3) can be satisfied where the following elements are proven by the Crown:

1. The accused had knowledge of the conditions of their bail order, or they were wilfully blind to those conditions; and

2. The accused knowingly failed to act according to their bail conditions, meaning that they knew of the circumstances requiring them to comply with the conditions of their order, or they were wilfully blind to those circumstances, and failed to comply with their conditions despite that knowledge; or

The accused recklessly failed to act according to their bail conditions, meaning that the accused perceived a substantial and unjustified risk that their conduct would likely fail to comply with their bail conditions and persisted in this conduct." [para. 109]

Three Key Themes

- **Blameworthiness – Responsibility – Fault**
- **Individual & Collective Rights, Interests, and Burdens**
- **Discretion vs. Rule of Law**

R. v. Zora

"A third reality is that onerous conditions disproportionately impact vulnerable and marginalized populations. Those living in poverty or with addictions or mental illnesses often struggle to meet conditions by which they cannot reasonably abide. Indigenous people, overrepresented in the criminal justice system, are also disproportionately affected by unnecessary and unreasonable bail conditions and resulting breach charges. […] The oft-cited CCLA Report provides the following trenchant summary:

> **Canadian bail courts regularly impose abstinence requirements on those addicted to alcohol or drugs, residency conditions on the homeless, strict check-in requirements in difficult to access locations, no-contact conditions between family members, and rigid curfews that interfere with employment and daily life. Numerous and restrictive conditions, imposed for considerable periods of time, are setting people up to fail — and failing to comply with a bail condition is a criminal offence, even if the underlying behaviour is not otherwise a crime."**

Finding the ingredients for true crimes
Recommended order of analysis

LOOK TO THE STATUTE, NOT THE FACTUAL SCENARIO!

1. **Identify the conduct element (and, if it's an omission, consider where the duty comes from).**

2. **Identify the consequences (if any); and, if there is a consequence, don't forget causation!**
   - ***Tip: to help identify a consequence, see if you could sensibly articulate a causation analysis.***
   - ***Tip: be careful not to mislabel an ulterior purpose as a consequence – must the Crown prove success?***

3. **Identify any *mens rea* language, if any, and look at the grammar of the statute to decide where to add it to your chart (i.e., what AR element does the MR element seem to attach to?)**

4. **Identify any remaining language (anything not crossed out?) – it's probably circumstances!**

5. **Determine whether you are dealing with subjective MR or objective MR.**
   - ***Tip: use your presumption of subjective mens rea!***

6. **Complete your *mens rea* ingredients list:**
   - **For objective *mens rea*, add the modified objective test.**
   - **For subjective *mens rea*, use the symmetry rule of thumb.**